

BADGEROW et al v. STATE OF CALIFORNIA

23CV46681

PETITION FOR ORDER PERMITTING LATE CLAIM

This is a special proceeding pursuant to Govt. Code §946.6 for leave to submit a late GCA claim for an incident involving a runaway golf cart.

Background

On 05/22/22, at approximately 1 p.m., petitioners Rachael Badgerow, Erin Cheney and David Brown were eating lunch at the Calaveras County Fairgrounds when an unmanned golf cart crashed into them, causing injuries. The CHP was summoned to investigate, and a report was taken. The investigating officer noted that the golf cart operator was at fault for failing to set the parking brake when leaving the cart at the top of an embankment. The officer further noted in the report that the golf cart was insured through the California Fair Service Authority.

On 12/09/22, petitioners submitted to the County of Calaveras an application to present a late claim for damages associated with the gold cart incident. Petitioners were informed at that time that the 39th District Agricultural Association – an agency arm of the State of California – was responsible for the premises upon which the incident occurred. The County asked petitioners' counsel to withdraw the application (the outcome of which is unknown).

On 12/15/22, petitioners submitted to the State of California an application to present a late claim for damages associated with the gold cart incident. According to petitioners, State never responded in any manner, leading to a *de facto* rejection.

On 04/05/23, petitioners filed the pending petition for relief.

Petition for Relief

The purpose of the Governmental Claims Act (GCA) is to provide the public entity sufficient information to enable it to (1) investigate/settle claims without the expense of litigation, (2) plan for potential fiscal liabilities, and (3) avoid similar liabilities in the future. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738.) As such, no suit for money or damages may be maintained against a governmental entity unless a formal claim has been presented to such entity within six months of accrual of the cause of action. (Govt. Code §911.2.) If the claimant fails to file within six months, he or she may apply in writing to the public entity for permission to file a late claim. (Govt. Code §911.4; see *J.M. v. Huntington Beach Union High School Dist.* (2017) 2 Cal.5th 648,

656.) If the public entity denies the application to file a late claim, the claimant may petition the court for relief within 6 months thereafter. (Govt. Code §946.6; *Coble v. Ventura County Health Care Agency* (2021) 73 Cal.App.5th 417, 425.)

Here, petitioners concede that they failed to present a claim for damages within the statutory six-month window for claims against the government. According to petitioners' counsel, the delay of a few weeks was due to a human data-entry error in the office, amplified by office software and office procedures regarding manually-created excel spreadsheets. (See Knapp Declaration Paragraphs 5-8 and Platt Declaration Paragraphs 3-7.) Counsel's paralegal Ms. Platt expressed she misidentified the case as garden-variety "accident" without tagging it as being against a government entity, and then forgot to also write it in the office excel spreadsheet for filing deadlines. She did, however, check in with the clients monthly and perform routine file reviews, and it was during the combination of this effort that the lightbulb went on and she (and counsel) realized that this "accident" case was against a defendant protected by statutory filing deadlines.

Respondent opposes the petition on the singular ground that the explanation provided by petitioners' counsel did not rise to the level of excusable neglect because counsel said nothing of his own diligence in the months leading up to the failed tickler (citing *Tackett v. City of Huntington Beach* (1994) 22 Cal.App.4th 60, 66). Although respondent's position is understandable, the test it offers is incomplete. The board reviewing applications for late filing "shall" grant the application if (1) the failure to present the claim during the initial six months was through mistake, inadvertence, surprise, or excusable neglect, and the public entity was not prejudiced, or (2) the claimant was a minor during the entire six-month window. (Govt. Code §§ 911.6(b).) Petitioner Rachael was indisputably a minor during the six months between injury and the closing of the window to present, which alone means that the State was required to accept her late filing. (See *Hernandez v. County of Los Angeles* (1986) 42 Cal.3d 1020, 1027-1028.) As for Erin and David, the calendaring errors committed by counsel – especially the failure to manually write in the case on the excel spreadsheet show – shows mistake and inadvertence. State does not allege prejudice, let alone prove its existence. Petitioners presented more than enough to trigger State's mandatory obligation to accept the late filing, and State failed to comply. It was not necessary for petitioners to also show excusable neglect, though the errors made here were isolated and something that any reasonably prudent paralegal might make, and therefore excusable. Counsel was otherwise diligent in handling the file (see reply brief page 2-3). (See *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234; *Benjamin v. Dalmo Mfg. Co.* (1948) 31 Cal.2d 523, 526-527; *Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1134-1135; *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 694; *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1782; *Flores v. Board of Supervisors* (1970) 13 Cal.App.3d 480, 483; *Nilsson v. City of Los Angeles* (1967) 249 Cal.App.2d 976, 980; *Bernards v. Grey* (1950) 97 Cal.App.2d 679, 683-686.) Since State was mandated to consider the late filing of a claim, and failed to do so, State has lost the opportunity to insist on compliance with the claims presentation

requirements. (See Govt. Code §946.6(c).) For that reason, petitioners are allowed to pursue their action. (See Govt. Code §946.6(f); *Ard v. County of Contra Costa* (2001) 93 Cal.App.4th 339, 343.)

Petition GRANTED. The Clerk shall provide notice of this Ruling to the parties forthwith. Petitioners to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

HAMPTON v. EAST BAY MUNICIPAL UTILITY DISTRICT

22CV46329

DEFENSE MOTION FOR SUMMARY JUDGMENT

This is a personal injury action. Plaintiff generally alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia.

Before the Court is a motion for summary judgment. Co-defendant Urban Park Concessionaires (“UPC”) contends that it is entitled to summary judgment/adjudication because neither of the two causes of action stated in the operative First Amended Complaint (negligence and premises liability) can succeed against it. According to UPC, it did not owe plaintiff any duty of care to protect him from injuries caused by diving into a submerged boulder because:

1. UPC had no control over the water level in the lake, and thus had no ability to warn or guard against a boulder that became invisible;
2. Plaintiff’s injury was the result of a volitional act of diving into unfamiliar waters and colliding with an open and obvious danger; and/or
3. Plaintiff’s injury was the result of an inherent/unavoidable risk associated with shallow-water diving, and UPC did nothing to increase that risk.

As noted in the recent ruling regarding EBMUD’s demurrer to the same pleading, there is evidence referenced by plaintiff that this Court has yet to actually see, to wit: evidence that someone actually placed the boulders at the base of the rock wall. This evidence would negate both the natural condition immunity (not relevant for this motion) but more importantly would be evidence of someone having increased the risk of injury associated with diving. While defendants focus on many “comparative fault” factors that may impact plaintiff’s recovery, the focus here needs to be on who performed the subsequent remedial measure (the “no diving” sign) and who put the boulder along the edge of the lake. This is an important observation since plaintiff asks this Court for additional time to marshal evidence of these things, the representation being that the evidence exists but has yet to be uncovered.

If it appears from the evidence submitted in opposition to a motion for summary judgment “that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented,” this court must either deny, or continue, the motion. (CCP §437c(h).) The purpose of this provision is to mitigate the harshness of summary judgment for a party who has not had the opportunity to marshal evidence to oppose the motion. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 253.) Although plaintiff has not provided enough information by which to secure a mandatory continuance (see *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715), plaintiff’s failure to meet